

Aging and People with Disabilities**Number: APD-PT-26-011**

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Issue date: 9/11/2026

Subject: Impacts of HR1 Non-Citizen Changes to OPI-M Consumers

Transmitting (check the box that best applies)

- ☐ New policy ☒ Policy change ☐ Policy clarification ☐ Executive letter
☐ Administrative Rule ☐ Manual update ☐ Other:

Applies to (check all that apply):

- | | |
|--|--|
| ☐ All ODHS employees | ☐ County DD Program Managers |
| ☒ Aging and People with Disabilities | ☐ Developmental Disabilities Services |
| ☒ Area Agencies on Aging: Type A and B | ☐ Self-Sufficiency Programs |
| ☐ Child Welfare Division | ☐ Support Service Brokerage Directors |
| ☐ Children's Intensive In Home Services | ☐ Stabilization and Crisis Unit |
| ☐ Children's Residential Services | ☐ Other (please specify): Enter Text |

Policy/rule title:

Policy/rule numbers:

Release number:

Effective date:

Expiration date:

References:

Web address:

Discussion/interpretation

Federal House Resolution 1 changes which citizenship and immigration statuses qualify for federal Medicaid funding beginning October 1, 2026. For more information on changes under this law please refer to [OEP-PT-26-027](#).

Many noncitizens who qualify under current federal eligibility requirements, including many refugees, asylees, humanitarian parolees, and survivors of trafficking or domestic violence, will no longer meet the federal citizenship or immigration-status requirements for Medicaid coverage. This includes some individuals currently eligible for Oregon Project Independence-Medicaid (OPI-M).

Because OPI-M is federally funded through Oregon's Medicaid 1115 demonstration, these changes affect some current OPI-M consumers and some people who apply for OPI-M before and after October 1, 2026. Eligibility for OPI-M is determined outside the ONE system requiring manual review, verification, and program transition.

Aging and People with Disabilities is identifying affected consumers to avoid unnecessary disruption in services and will be working with Area Agencies on Aging (AAAs) and consumers to identify other service options that may be available.

Identification and verification of current OPI-M consumers

APD OPI-M Analysts and Central Office Financial Eligibility staff are conducting a statewide review of the OPI-M caseload to identify consumers whose eligibility may be affected by the new federal requirements. Through this review, most individuals have been determined to meet the new H.R. 1 citizenship or qualified non-citizen requirements and will see no change in eligibility. However, APD believes there is less than 30 consumers who may be impacted at this time.

If after the central office review, APD is still unable to verify the individual's immigrant status, APD will contact the consumer directly to give them an opportunity to provide additional information or documentation.

Consumers who do not meet the new citizenship or qualified immigration-status requirements will receive written notice that their OPI-M benefits will close effective September 30th, 2026. The notice will explain the reason for the closure, the consumer's hearing rights, and potential alternative programs or services. Individuals who disagree with APD's determination will be given a reasonable opportunity period before their OPI-M benefits are closed. Applicable notice and hearing rights also apply.

Consumers applying for OPI-M before October 1, 2026

OPI-M remains available under the current eligibility requirements through September 30, 2026. However, a consumer who qualifies under the current requirements may have an immigration status that will no longer qualify for federally funded OPI-M beginning October 1, 2026.

Case managers must not discourage an otherwise eligible consumer from applying for OPI-M before October 1, 2026. Case managers must provide options counseling during the application and service-planning process, so the consumer understands that:

- The consumer may qualify for OPI-M under the current requirements but may not remain eligible after September 30, 2026;
- APD will review the consumer's citizenship or immigration status under the new federal requirements on October 1, 2026;
- Other service options may be available if OPI-M cannot continue; and
- Applying for or receiving OPI-M does not prevent the consumer from being evaluated for another program when appropriate.

The purpose of this counseling is to provide clear information about the upcoming change so consumers can make informed decisions and begin considering other service options before a transition becomes necessary.

Consumers applying for OPI-M AFTER October 1, 2026

Eligibility case managers processing applications for OPI-M should familiarize themselves with the HR1 non-citizen eligibility changes. Ensure that all eligibility requirements including citizenship or immigration status are met prior to approving OPI-M eligibility

Healthier Oregon, State Plan Personal Care and LTSS

Healthier Oregon is a medical program available to some individuals who will lose OPI-M coverage as part of these changes. Healthier Oregon does not apply the federal qualified immigration-status requirement. It may provide medical coverage and Medicaid long-term services and supports to consumers who meet the applicable financial and service eligibility requirements. However, Healthier Oregon does not use the expanded financial and service eligibility requirements available under OPI-M. Individuals who are eligible for Healthier Oregon may also be eligible for Healthier Oregon State Plan Personal Care (HO-SPPC) or Healthier Oregon Long Term Services and Supports benefits (HO-LTSS).

An OPI-M consumer who will lose OPI-M eligibility must be assessed for potential eligibility for Healthier Oregon, HO-SPPC and HO-LTSS. These programs may provide a pathway to continued in-home support. Eligibility must be determined based on the consumer's individual circumstances. Eligibility for Healthier Oregon does not automatically establish eligibility for SPPC or LTSS.

A consumer receiving Healthier Oregon cannot concurrently receive OPI-M or Oregon Project Independence-Classic (OPI-C).

OPI-C as a potential option

OPI-C may be an option for some consumers who cannot continue receiving OPI-M and are not receiving Healthier Oregon. OPI-C is a state-funded program administered by AAAs so HR `1 requirements do not apply. A consumer must meet all applicable OPI-C requirements, including age, service need, and other program requirements.

AAAs may consider impacted consumers for OPI-C based on available allocations and local service capacity. AAAs retain responsibility for OPI-C eligibility and service determinations and may establish local priorities consistent with state requirements. Existing OPI-C consumers and individuals at the greatest risk of out-of-home placement remain priorities under current requirements.

APD recognizes that the ability to serve additional consumers through OPI-C will differ by service area and available resources. Eligibility for OPI-C and the availability of OPI-C funding must not be represented as guaranteed.

Implementation/transition instructions

Local/branch action required

Local APD and AAA offices must:

- Inform affected eligibility, case management, and supervisory staff of this policy;
- Familiarize themselves with new citizenship requirements due to HR1.
- Continue accepting and processing OPI-M applications under the current eligibility requirements through September 30, 2026.
- Do not deny or discourage an otherwise eligible consumer from applying solely because the consumer may become ineligible under the requirements effective October 1, 2026.

- After September 30, 2026, deny applications for individuals who do not meet the new Medicaid eligibility criteria.
- Respond to central office requests for verification information;
- Ensure required notices and hearing rights are provided before OPI-M benefits are closed; and
- Cooperate with APD central office requests for information or documentation needed to verify citizenship or immigration status.
- When notified that a consumer will lose OPI-M eligibility, work with the consumer to evaluate potential eligibility for;
 - Healthier Oregon,
 - HO-LTSS,
 - HO-SPPC,
 - OPI-C, or other available supports.
- Clearly explain that eligibility and service availability must be determined separately for each alternative program and that continued services are not guaranteed.

AAA leadership should review local OPI-C capacity and identify potential service-transition concerns for affected OPI-M consumers.

Central office action required

- Complete statewide verification of citizenship and immigration status;
- Coordinate requests for additional information or documentation from consumers;
- Ensure individuals are given the opportunity to provide documentation to verify eligibility;
- Develop and issue appropriate consumer notices;
- Provide operational instructions for eligibility closures and service transitions;

- Develop options-counseling guidance for local APD and AAA offices;
- Support pathways for evaluating affected consumers for Healthier Oregon, HO-SPPC, HO-LTSS;
- Coordinate with AAA partners regarding local OPI-C capacity and transition concerns;
- Provide technical assistance to local offices; and
- Monitor implementation and potential gaps or disruptions in services.

Reviewed by impacted parties? ☒ Yes ☐ No

If yes, reviewed by: APD Policy & Operations Review

Filing instructions:

If you have any questions, please contact:

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